

*LITTLE FOLKS PLAYS
OF AMERICAN HEROES*

ROBERT E. LEE



*LITTLE FOLKS PLAYS
OF AMERICAN HEROES*

ROBERT E. LEE



The Project Gutenberg eBook of Robert E. Lee: A Story and a Play

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Robert E. Lee: A Story and a Play

Author: Ruth Hill

Release date: November 29, 2010 [eBook #34473]

Most recently updated: January 7, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/34473

Credits: Produced by David Garcia, Roberta Staehlin, Steve Read and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK ROBERT E. LEE:
A STORY AND A PLAY ***

Cover

ROBERT E. LEE

**A STORY
AND
A PLAY**

LITTLE FOLKS' PLAYS OF AMERICAN HEROES
GEORGE WASHINGTON
BENJAMIN FRANKLIN
ABRAHAM LINCOLN
ULYSSES S. GRANT
ROBERT E. LEE
JOHN JOSEPH PERSHING
MAKERS OF AMERICA

Richard G. Badger, Publisher Boston

Little Folks' Plays of American Heroes

ROBERT E. LEE

A STORY AND A PLAY

RUTH HILL



BOSTON

RICHARD G. BADGER

THE GORHAM PRESS

Copyright, 1920, by Richard G. Badger

All Rights Reserved

MADE IN THE UNITED STATES OF AMERICA

THE GORHAM PRESS, BOSTON, U. S. A.

CONTENTS

THE STORY—

PAGE

Growing Up	<u>9</u>
A Young Soldier	<u>10</u>
The Mexican War	<u>12</u>
A Returned Hero	<u>15</u>
The Civil War	<u>16</u>
The College President	<u>21</u>
THE PLAY—	
Act I	<u>29</u>
Act II	<u>37</u>
Act III	<u>44</u>
Act IV	<u>52</u>

THE STORY

THE STORY OF ROBERT E. LEE

GROWING UP

Once upon a time in beautiful Virginia there lived a little boy named Robert Edward Lee. It was in the days before the Civil War when, if we may believe all we hear, all the women were charming, and all the men were gentlemen.

The boy's father was one of the most gallant of the gentlemen, for he was Light Horse Harry of Revolutionary War fame. He it was who said of Washington, "First in war, first in peace, and first in the hearts of his countrymen." Mr. Lee did not realize, then, how many people would apply this same remark to his own son.

No doubt little Robert got in and out of as many scrapes as any other active little boy, but all the time he was hard at work learning to control his temper. I started to say he was learning to be a gentleman, but that was something he did not have to learn. A gentleman he was by nature, as the Lees of Virginia had been for generations.

He did not have a very happy boyhood. His father died when Robert was only eleven. His mother was an invalid and Robert was the one who did all the thoughtful little things that mean so much when one is sick. He would race home from school to take her out to ride. He would arrange all the pillows carefully and then tell her everything amusing he could think of, because he said unless she was cheerful the ride would do her no good.

In her last illness he nursed her day and night. If Robert left the room, she kept her eyes on the door until he returned, but she never had long to wait.

A YOUNG SOLDIER

When the time came for Robert to choose a profession he decided to be a soldier. He prepared himself for West Point. His teacher said that everything

Robert started to do, he finished beautifully, even if it were only a plan drawn on his slate.

When the time came, he received his appointment to West Point through Andrew Jackson, who was greatly taken by the appearance of this straightforward young man.

At West Point he graduated second in his class, and better than that, he never received a demerit all the time he was there.

Right after graduation, he was made second lieutenant of Engineers and for some time he was busy looking after our coast defenses.

Two years afterwards he married. Who do you suppose the bride was? The granddaughter of Washington's stepson. Robert and Mary Park Custis had played together as children. She was an heiress, while Lieutenant Lee was poor, but that did not lessen her pride in her husband.

Some years later, after he had been made Captain the Mississippi River threatened to flood St. Louis. General Scott was asked for help and he sent Captain Lee. "He is young," Scott wrote, "but if the work can be done, he can do it."

The city government grew impatient because they thought the young engineer was not working fast enough. They withdrew the money they had voted to spend on the work, but this did not stop Captain Lee. All he said was "They can do as they like with their own, but I was sent here to do certain work, and I will do it." And he did it.

Feeling in the city ran high, riots broke out, and it was said that cannons were placed ready to fire on the working force. But Lee kept calmly on to the end, and his work still stands today. Just as when he was a boy, anything he began, he finished beautifully.

THE MEXICAN WAR

Later, when the Mexican War broke out, of course Captain Lee was sent to the border. You know what sort of country that is, how easy it is for

Mexicans to hide in the mountains, and how hard it is for Americans to find them.

So successful was Lee as a scout, however, that first he was made major, then lieutenant-colonel, and finally colonel, all in one year. General Scott declared years afterward that Lee was the very best soldier he had ever seen.

Early in the war, he started out with a single Mexican guide whom he forced to serve at the point of a pistol. The Americans had received a report that the Mexicans had crossed the mountains and were near, ready to attack. Lee started out to find how near the Mexicans really were.

Soon Lee and his frightened guide came upon tracks of mules and wagons in the road. This would have satisfied many scouts, but Lee determined to press on until he reached the pickets of the enemy.

To his surprise he found no pickets, but he saw large camp-fires on a hillside not far away. By this time, his guide was ready to die of fright and begged Lee to return. But he was not quite satisfied and rode forward. Soon he saw what carried out the report he had heard of the mountain side covered with the tents of the Mexicans, for there it gleamed white in the moonlight. Still riding on, he heard the loud talking and usual noises of a camp. But by this time he discovered that what others had taken for tents were,—well what do you suppose? Why, nothing but sheep!

Riding into the herders' camp, he learned that the Mexicans had not yet crossed the mountains, so he galloped back to his own camp with this important news,—much to the relief of his guide.

At another time he set out in darkness in the midst of a terrible tropic storm, across lava beds where Mexicans lurked. By carrying an important message, he forced the Mexicans to retreat. Seven officers were sent on the same errand, but all except Lee returned without delivering the message. General Scott called it the bravest act of the whole war.

A story which shows how Lee kept right on doing anything that he knew was right, is told of him when he was in Mexico. He had been ordered to take some marines and make a battery to be manned by them afterwards. The sailors did not like to dig dirt and swore. Even their captain said his

men were fighters, not moles. Lee simply showed his orders and made them keep on. When the firing began, the marines found their trenches very useful. The captain apologized to Lee saying, "I suppose after all, your work helped the boys a good deal. But the fact is, I never did like this land fighting—it ain't clean."

After the fall of Mexico when the American officers were celebrating with a banquet in the palace, a health was proposed to the gallant young captain of engineers who had found a way for the army into the city. Then they noticed that Lee was not there, so one of them went in search of him.

At last Lee was found in a faraway room, hard at work studying a map. When his friend asked him why he was not at the banquet, he pointed to his work. Then his friend told him that was just drudgery and that some one else could do it just as well.

"No," said Lee, "No, I am only doing my duty."

A RETURNED HERO

After the war with Mexico, Lee was one of the most popular war heroes. The Cubans tried to get him to lead them in a revolution against Spain. They offered him far more money than he could receive here, but he thought it dishonorable to accept service in a foreign army when he held a United States commission.

Three years later he was made superintendent of West Point. When he learned of his new position, he wrote just what we might expect of him. He said he was sorry to learn that the Secretary of War had decided on him, because he was afraid that he did not have skill and experience enough.

As a matter of fact, he made a highly successful superintendent. One day when Lee was out riding with his son, they caught sight of three cadets who were far out of bounds, and were going farther just as fast as they could. After a moment Lee said, "Did you know those young men? But no, if you did, don't say so. I wish boys would do what is right; it would be so much easier for all parties."

After three years' service at West Point, Lee was made lieutenant-colonel in a new cavalry regiment, intended to keep peace in the South Western territory which had been taken over from Mexico. His time was spent in fighting Indians.

He happened to be in Washington at the time of the famous John Brown raid and he was sent to end it. Lee captured John Brown and then turned him over to the civil authorities. If it had not been for Lee, John Brown and his party would have been lynched. In talking with a friend afterwards Lee said, "I am glad we did not have to kill him, for I believe he is an honest, conscientious old man."

THE CIVIL WAR

Day by day the feeling between the Northern and Southern states grew more bitter. Lee thought both sides were somewhat in the wrong but he kept right to his military duties. He said a soldier should not dabble in politics.

At last the break came for Lee when Virginia decided to leave the union. Can't you just imagine how the heart of Lee was torn? Here he was an officer in the United States army, and yet his beloved Virginia was no longer to be a part of the nation.

It is said that he was offered the position of Commander-in-Chief of the United States forces if he would remain loyal to the union, but he could not turn his back upon Virginia. It was not as if he had felt bitterly against the North. It was not as if he felt strongly on the slave question. As a matter of fact he had freed his own slaves before. He wanted peace but since Virginia had decided to withdraw from the union and so needed him, he was not the man to fail her.

We still remember how he refused to take command in Cuba because he was a United States officer. Now he was obliged to resign his commission, but he said he hoped never to draw his sword again except in defence of his native state.

As soon as it was known that Lee had retired from the United States army, the Governor offered him the position of Commander-in-Chief of the forces of Virginia.

The president of the Virginia convention gave him his commission saying, "Sir, we have by this unanimous vote expressed our convictions that you are at this day, among the living citizens of Virginia, first in war, and we pray God that it may soon be said of you that you are first in peace, and when that time comes you will have gained the still prouder distinction of being first in the hearts of your countrymen."

So, at the age of fifty-four, after thirty-two years of service in the United States army, Lee accepted the command which he felt to be his duty.

For four years, the life of General Lee was a part of all men's history. You know how he took charge of raw recruits and in two months had sixty trained regiments ready for the service of his state. You know how hard it was for the South to get arms and ammunition. General Lee called upon all the citizens to give up all the guns they owned and saw that factories turned out as much ammunition as possible.

I don't have to tell you of Lee's victories and defeats, because you have read of them all.

He had not only to fight with the Northern armies but he had also to battle against home sickness and measles (measles during the Civil War were no joke) in his own camp.

Because the Southern States were fighting for their separate rights, the feeling of independence was particularly strong among the Southern officers, and General Lee was sometimes seriously hindered by not having his orders carried out.

Then came the last terrible years and months of the war when the South could not get food or clothes or shoes for her army. But the men inspired by Lee, continued to fight bravely on. They knew that their general was not feasting while they starved; for often one cold sweet potato would be all that General Lee would have for a meal.

You can see how great an influence Lee had on the army, by the words that would pass from mouth to mouth before a battle. "Remember, General Lee is looking at us."

Before one of the later battles of war, Lee was reviewing the troops. "These," said one of the officers, "Are the brave Virginians."

Without saying a word, Lee removed his hat and rode the length of the line. One man said it was the most eloquent speech he had ever heard.

A few minutes later as the men advanced to the charge one of the youngest called out, "Any man who would not fight after what General Lee said is a blame coward!"

During battle, Lee seemed not to know the meaning of fear. His officers were forever telling him to keep out of danger. On one occasion he was so determined to fight in the front of the battle, they had to refuse to advance until he went back. He said one time in his quiet vein of humor, "I wish some one would tell me what my place is on the battlefield, I seem never to be in it."

Another time, he was seen to advance in the midst of firing, stoop, and pick something up. He was replacing a baby bird that had fallen out of its nest.

Finally with all supplies cut off, General Lee saw all further fighting was useless, and he accepted arrangements for surrender. One of his officers told him that history would blame him for surrendering. He replied that it did not matter if he knew it was right.

So at the courthouse at Appomattox, Lee proved himself as great as ever he had been in victory. It is easy enough to be great in the midst of victory, but the truly great man is the one who remains great in spite of defeat. That is the test.

General Grant was so much touched by the bravery and suffering of the Southern army that by his orders no salutes of joy were fired.

After signing the articles of surrender, Lee came out of the courthouse, looked up for a moment at the Virginia hills for which he had fought so bravely, struck his hands together just once in agony, then mounted his confederate grey horse, Traveller, and rode calmly away.

As he rode, he passed in view of his men,—as many as remained of them. News of the surrender had spread, so they were standing about in dejected

groups, when they caught sight of Lee. For a moment they forgot hunger and defeat and let out a mighty shout. Then they crowded around their former commander kissing his hands through their tears.

"Men," he said, "we have fought through the war together. I have done my best for you. My heart is too full to say more."

THE COLLEGE PRESIDENT

The Lees' beautiful home, Arlington, across the river from Washington, had been used as headquarters for the Union Army during the war. The country home they owned had been burned.

The family was now living at Richmond, and General Lee went to join them there. You can imagine how glad they were to see each other after their long and terrible separation.

But Lee was not allowed the peaceful home life for which he longed. Callers of every class crowded the house.

One morning an Irishman who had fought on the Northern side came with a basket of provisions, and insisted upon seeing General Lee. The servant could not put him off, so when the General appeared, Pat said to him, "Sure, sir, you're a great soldier, and it's I that knows it. I've been fighting against you all these years, and many a hard knock we've had. But, General, I honor you for it, and now they tell me you are poor and in want, and I've brought you this basket. Please take it from a soldier."

Lee, of course, thanked him for it and told him that although he himself was not in need there were poor soldiers in the hospital who would be glad to be remembered by so generous a foe.

With the death of President Lincoln, feeling in the North against the South took new life. Friends of Lee began to fear for his safety.

One day a confederate soldier in a tattered uniform called upon the general saying he was speaking for four other fellows around the corner who were too ragged to come to the house. They offered their loved general a home in the mountains where they would guard him with their lives. Lee thanked

them with tears in his eyes, but he said he could not live the life of an outlaw. He gave them some of his clothes and the soldier went back to his friends around the corner.

Because of Mrs. Lee's poor health, it became necessary to leave Richmond. A friend offered them a country house near Cartersville in Cumberland county. But people followed him even here. An English nobleman offered him an estate abroad, but Lee would not leave Virginia now that she needed him more than ever.

He received all sorts of offers of money, of land, of stock if he would allow business companies just to use his name. He was offered the presidency of an insurance company at a salary of \$50,000 a year. He said he could not accept because he knew nothing about the insurance business. "But General, you will not be expected to do any work; what we wish is the use of your name."

"Don't you think," said General Lee, "that if my name is worth \$50,000 a year, I ought to be very careful about taking care of it?"

As one of his daughters said, "They are offering my father everything but the only thing he will accept,—a chance to earn honest bread while engaged in some useful work."

That speech made to a trustee of Washington College, brought Lee the offer of presidency of the college at a salary of \$1,500 a year. At first Lee would not accept, because he was afraid that because he was still a prisoner on parole it might hurt the college to have him as its head. When the trustees told him what an honor it would be to the college to have his name connected with it, he finally accepted.

On his old war horse, Traveller, he rode into Lexington alone to take up his college duties. At first he was met with a reverent silence, but soon his old soldiers broke out into their far-famed rebel yell.

He took his oath as president on October 2, 1865, and from then until his death, he devoted himself to the needs of the college. When he took charge there were only four professors and forty students. Don't you think most men who had been commanders-in-chief would have considered it beneath their dignity to accept a position like that?

He put every student on his honor. If he found that a student was getting no good from the college, and that his influence might be bad on the others, the student was given the chance to leave instead of being expelled. Even as the college grew bigger, Lee knew every student personally, and even most of his marks.

Lee was still pursued by offers of large salaries for the mere use of his name. To one of these he replied what he might have said to all, "I am grateful, but I have a self-imposed task which I must accomplish. I have led the young men of the South in battle. I have seen many of them die on the field; I shall devote my remaining energies to training young men to do their duty in life."

The trustees of Washington College wanted to give him as a home, the house erected for him as president. But he insisted that the building be kept by the college, he said he could not allow himself or his family to be a tax on the college.

Because of poor health, Lee went South during his last winter. While he was gone, the trustees voted to give his family three thousand dollars a year.

But this, like everything else, Lee refused. After Lee's Southern trip, it was hoped that he had regained his health, for he took up his college duties with such energy.

On the morning of September 28, 1870, General Lee was at his desk promptly as usual. In the afternoon he went to a business meeting of the Church officers. A steady rain was falling and the air was chilly. He presided at the meeting, sitting in the cold, damp church. When it was announced that the minister's salary had not been raised, Lee said he would pay what was lacking.

Tea was waiting for him when he came home. He stood up as if to say grace, but he could not speak. When the doctor came, he told Lee he would soon be up again riding his favorite gray, but Lee only shook his head. Then later in his delirium, he showed his mind had wandered back to the battlefields, for once he said, "Strike the tents." And again speaking of one of his favorite officers who had been killed in the war, he said, "Tell Hill he *must* come up."

Then at last Lee passed peacefully away from all battlefields.

One time a young student was called to the president's office and was told gently that only patience and industry would prevent the failure that would otherwise certainly come to him.

"But, General, you failed."

"I hope that you may be more fortunate than I," was the quiet answer.

But it was only the General's great modesty that made him consider himself a failure. What greater success could come to any man than to be always a Christian and always a gentleman?

THE PLAY

ACT I

SCENE I

Scene: Alexandria, Va., the garden in front of the Lees' home in the spring of 1819.

Characters

Robert Lee, aged 12
Bud, his chum, aged 11
Slats, a friend, aged 12
Fat, another friend, aged 13

(Enter ROBERT and BUD. BUD has a fishing rod. ROBERT is carrying his school books. SLATS follows tossing a ball in the air and catching it. FAT trails along last, as usual.)

BUD—An say, Rob, get your pole and come on fishing. They say they're biting great. Have you asked your mother if you could go?

ROBERT—No, I haven't.

SLATS—Well what do you think she is, a mind reader or something?

FAT—No, probably he thinks if he waits long enough, somebody will ask her for him.

BUD—Don't judge everybody by yourself. Rob always does everything for himself and a lot of things for other people, and you know it, unless your head's too fat.

SLATS—Well, aren't you going to ask her Rob?

ROBERT—No, I told you before, I couldn't go fishing.

FAT—Well, how do you know you can't if you haven't even asked? Talk about my head being fat!

BUD—You better be careful what you say to Rob. He could trim the life out of you, and you know it.

ROBERT—I don't see what you boys are making all this fuss about. I just can't go fishing, that's all. You fellows go ahead and have a good time and tomorrow tell me all about that biggest fish that got away.

BUD—Don't you want to go, Rob?

ROBERT—Of course I want to go, but I simply can't this afternoon, that's all.

BUD—Aw what's the secret, Rob? Aren't you and I pardners?

ROBERT—There isn't any secret, Bud. I'm just going to take mother out to ride just as I always do.

SLATS—Well say, can't she stay home just for once?

ROBERT—She does stay home all the time except when I take her out to ride. Now be careful, or she might hear you, and not want me to take her out.

FAT—Say, if I'd thought of that sooner, I'd have talked at the top of my lungs.

BUD—Be careful, Fat, or Rob'll have you yelling at the top of your lungs.

ROBERT—Good luck, boys. Run along and have a good time. I hope the fish bite as fast as snapping turtles. (*He goes in the house.*)

BUD—Come on boys, no use trying to get Rob. When he makes up his mind, you might just as well not try to budge him.

FAT—Aw, he's tied to his mother's apron strings.

SLATS—You shut up before I make you!

BUD (*To FAT*)—Say if you were half as manly as he is, no one would know you.

FAT—I didn't mean anything. I like Rob just as well as the rest of you, but if I did all the things for my mother that he does for his, everyone'd call me a sissy.

SLATS—Yes, and probably they'd be right. Come on, Fat, I mean "Sissy."

(BUD, SLATS and FAT go on their way. Negro servant leads out horse and carriage. ROBERT comes out of the house helping his mother down the stairs.)

MRS. LEE—Don't strain yourself, Robert.

ROBERT—You don't know how strong I am, Mother. Lean harder. I don't feel you at all.

MRS. LEE—I don't know what I'd do without you Robert. You're both sons and daughters to me.

(ROBERT helps her into the carriage.)

ROBERT—There, are you quite comfortable, mother? *(He arranges the cushions for her.)*

MRS. LEE—Yes thank you dear, but I do feel as if you ought to be out playing instead of taking an old invalid like me out to ride.

ROBERT—You aren't old and you must get well so fast that you won't be an invalid any longer, and both of us are going to have the best possible ride. *(They drive away.)*

SCENE II

The Harbor of St. Louis, banks of the Mississippi River, 1839.

Characters

Captain Robert E. Lee

First Lieutenant Smith

Buck Brown, Town Bully

Coyote Jim, his pal, a half-breed

Soldiers at work
Eight friends of Buck and Coyote Jim

BUCK—I'm a-lookin' for the boss of these diggin's.

LIEUTENANT—You want Captain Lee. (*Pointing to him.*)

BUCK—Be you Captain Lee?

LEE—That's my name. What can I do for you?

BUCK—You can't do nothin' for me. Me and my friends can do anything we want for ourselves. We ain't helpless, see?

LEE—That being the case, I wish you would proceed to your own affairs and allow me to attend to mine.

BUCK—We'd be happy to have you, but this here you're doing now, don't happen to be none of your business.

LEE—Evidently you are looking for trouble, but I am much too busy to oblige you.

BUCK—Unless you leave off being busy right here and now, you're pretty liable to land in a heap o' trouble.

LEE—I am not in the least interested in your threats and I will ask you to be kind enough to leave in order to save me the trouble of having you put out.

BUCK—I reckon you don't know who you're talking to. I'm Buck Brown and this is Coyote Jim, my running mate, and all the rest of these here is our pals and have come to back us up in anything we say.

LEE—I am here to work not to argue. If you are not away from these works in three minutes, I will take means to see that you are.

BUCK—Did you know the city gov'ment wasn't going to give you no money for your work?

LEE—They can do as they like with their own, but I was sent here to do certain work, and I will do it.

BUCK—(*Pointing.*) Do you see them cannons up there? Unless you quit your dirty meddlin', you'll have a chance to get acquainted with them.

LEE—Do you think I'd be kept from doing my duty by a pack of bullies and cowards? Go back and hide behind your cannon. You'll need more than those to protect you if you meddle again.

(*BUCK and his friends skulk out.*)

SCENE III

Banquet Hall of the Palace, City of Mexico, after its conquest by the American forces. Officers sitting around the table.

Characters

General Scott
General Wilcox
General Twiggs
General Magruder
Thirty other officers

WILCOX—Well, I must say I'm thankful it's all over and I do hope it isn't long before we can get back to God's own country. Furthermore, I for one am thankful enough to be sitting here enjoying myself.

SCOTT—I am inclined to believe that if it had not been for one Captain Robert E. Lee, you and I would still be fighting those slippery Mexicans.

PIERCE—Yes, I have the utmost confidence in the skill and judgment of Captain Lee.

TWIGGS—His gallantry and good conduct deserve the highest praise.

WILCOX—(*Rising and raising his glass.*) Gentlemen, I wish to propose a toast that I know you will all drink heartily. I propose the health of the Captain of Engineers who found a way for our army into the city. Gentlemen, (*Raising his glass again*) the health of Captain Robert E. Lee!

(All the officers rise at once and lift their glasses. Then look around for LEE.)

WILCOX—Why he isn't here. What can be the matter.

MAGRUDER—I'll go and fetch him.

SCOTT—You might know Lee would be first in the battle and last at a banquet.

TWIGGS—I thought all of the crowd were here.

SCOTT—They are all here but Lee. Evidently we were all too much interested in our food to notice anything else. Let's sing a song to welcome him. *(They sing two stanzas of "Yankee Doodle.")*

TWIGGS—Here comes Magruder alone. *(MAGRUDER enters.)* Why, what's the matter? Couldn't you find him?

MAGRUDER—Oh, I found him all right, but that was all the good it did me.

SCOTT—Is he ill?

MAGRUDER—If he is, I wish I had the same thing the matter with me. He's suffering from a sense of duty.

TWIGGS—You don't have to worry then.

WILCOX—Tell us all about it.

MAGRUDER—You might as well sit down first because he isn't coming. *(They all sit down but MAGRUDER.)* You see I found him in a little room in a corner of the palace hard at work on a map. I asked him why he wasn't at the banquet and he said he was too busy. I told him it was just drudgery and to let some one else do it, but he looked up at me with that mild, calm gaze we all know so well and said, "No, I'm just doing my duty."

ACT II

SCENE I

General Scott's office, Washington, April 18, 1861.

Characters

Colonel Lee

General Scott

SCOTT—The nation is in a terrible condition.

LEE—As far as I can judge from the papers we are between a state of anarchy and civil war. May God avert from us both!

I see that four States have declared themselves out of the Union. Four more apparently will follow their example. Then if the border States are dragged into the gulf of revolution, one half of the country will be arrayed against the other.

I must try to be patient and wait the end, for I can do nothing to hasten or retard it.

SCOTT—I don't quite see why conditions have become so serious.

LEE—The position of the two sections which they hold to each other has been brought about by the politicians of the country. The great masses of the people, if they understood the real question would avoid it. I believe that it is an unnecessary condition of affairs and might have been avoided, if forbearance and wisdom had been practised on both sides.

SCOTT—Which side do you think is more to blame?

LEE—The South, in my opinion, has been aggrieved by the act of the North. I feel the aggression and am willing to take every proper step for redress. It is the principle I contend for, not individual or private interest. As an American citizen, I take great pride in my country, her prosperity, and

her institutions. But I can anticipate no greater calamity for this country than a dissolution of the Union. It would be an accumulation of all the evils we complain of, and I am willing to sacrifice everything but honor for its preservation. I hope, therefore, that all constitutional means will be exhausted before there is a resort to force. Secession is nothing but revolution. Still a Union that can be maintained only by swords and bayonets, and in which strife and civil war are to take the place of brotherly love and kindness, has no charm for me. I shall mourn for my country and for the welfare and progress of mankind.

SCOTT—But do you think slavery is just?

LEE—If all the slaves of the South were mine, I would surrender them all without a struggle to avert this war.

SCOTT—Then your sympathies are with the North?

LEE—Though opposed to secession and war, I can take no part in an invasion of the Southern States.

SCOTT—But surely you could not desert the United States army?

LEE—I deeply regret being obliged to separate myself from the service to which I have devoted the best years of my life and all the ability I possessed.

SCOTT—But I have been given to understand that in case you remained loyal, you would be given a very exalted command.

LEE—Yes, Blair has just been talking to me in regard to the matter, but no consideration on earth could induce me to act a part however gratifying to me, which could be construed into disregard of, or faithlessness to the Commonwealth. If I am compelled to resign I cannot consult my own feelings in the matter. Virginia is my country, her will I obey, however lamentable the fate to which it may subject me. If the Union is dissolved and the Government disrupted, I shall return to my native State and share the miseries of my people, and, save in her defence, will draw my sword no more.

SCENE II

Convention of Virginia, Richmond, April 23, 1861.

Characters

Robert E. Lee

Mr. Janney, President of the Convention

Convention members and citizens

JANNEY—In the name of the people of our native State, here represented, I bid you a cordial and heartfelt welcome to this hall, in which we may almost hear the echoes of the voices of the statesmen, the soldiers, and the sages of bygone days who have borne your name and whose blood now flows in your veins. We met in the month of February last charged with the solemn duty of protecting the rights, the honor, and the interests of the people of this commonwealth. We differed for a time as to the best means of accomplishing that object, but there never was at any moment a shade of difference among us as to the great object itself; and now, Virginia having taken her position, we stand animated by one impulse, governed by one desire and one determination, and that is, that she shall be defended, and that no spot on her soil shall be polluted by the foot of an invader.

When the necessity of having a leader for our forces became apparent, all hearts and all eyes turned to the old county of Westmoreland. We knew how prolific she had been in other days of heroes and statesmen; we knew she had given birth to the Father of his country, to Richard Henry Lee, to Monroe, and last, though not least, to your own gallant father; and we knew well by your deeds that her productive power was not exhausted. Sir, we watched with the most profound and intense interest the triumphal march of the army led by General Scott, to which you were attached, from Vera Cruz to the capital of Mexico. We read of the conflicts and blood-stained fields, in all of which victory perched upon our banners. We knew of the unfading lustre which was shed upon the American arms by that campaign, and we know also what your modesty has always disclaimed, that no small share of the glory of those achievements was due to your valor and your military genius.

Sir, one of the proudest recollections of my life will be that I yesterday had the honor of submitting to this body the confirmation of the nomination, made by the governor of this State, of you as commander-in-chief of the

naval and military forces of this commonwealth. I rose to put the question and when I asked if this body would advise and consent to that appointment, there rushed from the hearts to the tongues of all the members an affirmative response, which told with an emphasis that could leave no doubt of the feeling whence it emanated. I put the negative of the question for form's sake, but there was an unbroken silence.

Sir, we have by this unanimous vote expressed our convictions that you are at this day, among the living citizens of Virginia, first in war, and we pray God most fervently that you may so conduct the operations committed to your charge that it may soon be said of you that you are first in peace, and when that time comes you will have gained the still prouder distinction of being first in the hearts of your countrymen.

Yesterday your mother, Virginia, placed her sword in your hands upon the implied condition—which we knew you will keep to the letter and in the spirit—that you will draw it only in defence, and that you will fall with it in your hand rather than the object for which it was placed there shall fail. *(Long applause from convention members and citizens.)*

LEE—Mr. President and Gentlemen of the Convention: Profoundly impressed with the solemnity of the occasion, for which I must say I was not prepared, I accept the position assigned me by your partiality. I would have much preferred it had your choice fallen upon an abler man. Trusting in Almighty God, an approving conscience, and the aid of my fellow-citizens, I devote myself to the service of my native State, in whose behalf alone will I ever again draw my sword.

ACT III

SCENE I

General Lee's Tent.

Characters

General Lee
Major W. H. Fitzhugh Lee, his son
Hon. B. H. Hill
General Starke
An Orderly

HILL—I have come to ask your advice. Do you think it would be wise to move the Southern capital farther South?

LEE—That is a political question and you politicians must answer it. I am only a soldier.

HILL—That is the proudest name today.

LEE—Yes, there never were such men in an army before. They will go anywhere and do anything if properly led.

HILL—They could have no commander equal to General Lee.

LEE—No, we made a great mistake Mr. Hill in the beginning of our struggle, and I fear in spite of all we can do, it will prove to be a fatal mistake.

HILL—What mistake is that General?

LEE—Why sir, in the beginning we appointed all our worst generals to command the armies, and all our best generals to edit the newspapers. As you know, I have planned some campaigns and quite a number of battles. I have given the work all the care and thought I could, and sometimes when my plans were completed, so far as I could see they seemed perfect. But

when I have fought them through I have discovered defects, and occasionally wondered I did not see some of the defects in advance. When it was all over I found by reading a newspaper that these best editor-generals saw all the defects plainly from the start. Unfortunately, they did not communicate this knowledge to me until it was too late.

I have no ambition but to serve the Confederacy and do all I can to win our independence. I am willing to serve in any capacity to which the authorities may assign me. I have done the best I could in the field, and have not succeeded as I should wish. I am willing to yield my place to the best generals, and will do my best for the cause in editing a newspaper.

Even as poor a soldier as I am can generally discover mistakes *after it is all over*. But if I could only induce these wise gentlemen, who see them so clearly *beforehand*, to communicate with me in advance, instead of waiting till the evil has come upon us—to let me know what *they knew all the time*—it would be far better for my reputation, and, what is of more consequence, far better for the cause.

HILL—Don't let those waspish editors annoy you. The South is behind you to a man. They know what General Lee cannot accomplish, no man can.

(*ORDERLY enters and salutes.*)

LEE—What is it?

ORDERLY—General Starke wishes to see you.

HILL—I must leave you General, I am grateful for the audience.

LEE—I am always glad to talk to those interested in our common cause. Good day, Mr. Hill.

HILL—Good day, General. (*Exit.*)

LEE—Show General Starke in.

(*Enter GEN. STARKE. He salutes.*)

LEE—(*Saluting.*) Good morning, General, what can I do for you.

STARKE—Nothing for me sir, but a good deal for yourself.

LEE—This is no time to think of private benefits.

STARKE—But General your reputation is suffering, the press is denouncing you, your own State is losing confidence in you, and the army needs a victory to add to its enthusiasm.

LEE—I cannot afford to sacrifice five or six hundred of my people to silence public clamor. When it is time to strike, we will strike with a will.

STARKE—I wish those Northerners were all dead.

LEE—How can you say so?

Now I wish they were all at home attending to their own business, and leaving us to do the same. They also are my countrymen. General, there is a good old book which says, "Love your enemies." What a cruel thing is war; to separate and destroy families and friends, and mar the purest joys and happiness God has granted us in this world; to fill our hearts with hatred instead of love for our neighbors and to devastate the fair face of the beautiful world.

STARKE—But think of our men who have laid down their lives so bravely.

LEE—The loss of our gallant officers and men throughout the army causes me to weep tears of blood and to wish that I might never hear the sound of a gun again.

STARKE—I am sorry to have worried you General, you are right, good day!

(Salutes and exit. Enter MAJOR W. H. FITZHUGH LEE.)

W. H. F. LEE—Father!

LEE—Fitzhugh, how good it is to see you. You don't know how much I have missed you and your mother and your brothers and sisters.

W. H. F. LEE—Won't it be wonderful when the war will be over and we can all be together again.

LEE—God grant that it may be so!

W. H. F. LEE—I can't stay any longer, Father. I just came in to see you a moment before starting. I must be about my duty.

LEE—I know that wherever you may be placed, you will do your duty. That is all the pleasure, all the comfort, all the glory we can enjoy in this world.

Duty is the sublimest word in the language. There is a true glory and a true honor, the glory of duty done, the honor of integrity of principles.

(They salute.)

SCENE II

Battlefield, the Southern Lines. Shells falling all around.

Characters

General Lee
General Gordon
General Gracie
General Stuart
Northern Prisoners
Soldiers

(Enter squad of Soldiers with three Northern prisoners. One without a cap.)

LEE—*(Addressing prisoner without cap.)* Where is your cap? Did the Rebels shoot it off?

PRISONER—*(Saluting.)* No, General, but one of them took it off.

LEE—*(Noticing a blue cap on one of the Confederate soldiers.)* Give him back his cap, even if your own is ragged.

Men, you had better go farther to the rear, they are firing up here, and you are exposing yourselves. *(Exeunt soldiers and prisoners.)*

(Enter General Gracie who places himself directly in front of General Lee in the direction of the firing.)

LEE—Why General Gracie, you will certainly be killed.

GRACIE—It is better, General, that I should be killed than you. When you go to the rear, I will.

(Enter General Gordon with company of men.)

GORDON—General Lee, this is no place for you. Do go to the rear. These are Virginians and Georgians, sir—men who have never failed—and they will not fail now—Will you boys? Is it necessary for General Lee to lead this charge.

SOLDIERS—No! no! General Lee to the rear. General Lee to the rear! We will drive them back, if General Lee will only go to the rear.

GORDON—Forward! Charge! and remember your promise to General Lee.
(Exeunt.)

GEN. STUART—General, this is no place for you, do go away at once to a safe place.

LEE—I wish I knew where my place is on the battlefield: wherever I go some one tells me it is not the place for me to be.

LEE—*(To soldiers.)* Soldiers, I am more than satisfied with you. Your country will thank you for the heroic conduct you have displayed,—conduct worthy of men engaged in a cause so just and sacred, and deserving a nation's gratitude and praise. Now you must go farther back, you are exposing yourselves unnecessarily. *(As they pass back a little, slowly and unwillingly, Lee goes farther forward, stoops down and picks up something.)*

FIRST SOLDIER—What is he doing?

SECOND SOLDIER—Why he's picking up a little bird that had fallen from its nest.

FIRST SOLDIER—"He who heeds the sparrow's fall."

SECOND SOLDIER—I've heard of God, but here is General Lee!

SCENE III

Outside Appomatox Courthouse during Lee's conference with Grant.

Ragged Confederate soldiers on one side. Northern troops on the other.

1ST CONFEDERATE—Their uniforms don't look much like ours, do they?

2ND CONFEDERATE—No, nor their General doesn't look much like ours either.

3RD CONFEDERATE—Didn't Marse Robert look wonderful when he went through that door? Just naturally hating to go in, but going just the same, because he knew it was right.

1ST CONFEDERATE—Of course he had to go in, we couldn't have stood another day without any rations.

2ND CONFEDERATE—You mean you couldn't. I could have gone till I dropped without rations, if Marse Robert had said so.

3RD CONFEDERATE—But he wouldn't let his men suffer any longer when he saw it was no use. Sh! Here he comes now.

(Soldiers stand at attention. The door slowly opens and LEE steps out. He looks up to the hills and sky. Silently clasps his hands together, then slowly and almost bent, walks down the steps. For a moment the men are silent. Then the sight of GEN. LEE is too much for them and they crowd around him cheering him.)

LEE—*(Lifting his hand for silence.)* Men, we have fought through the war together. I have done my best for you. My heart is too full to say more.

ACT IV

Scene—Lee's Parlor at Richmond.

Characters

Gen. Lee

Mrs. Jackson, a family friend

Jack Sharpe, a former Confederate soldier

Sam, an old negro servant

G. W. Custis Lee, Gen. Lee's son

Mr. Brown, representative of an Insurance Company

Judge Brockenborough, Trustee of Washington College

PAT—(*Bursting through door with a huge basket of provisions, salutes.*)
Sure, sir, you're a great soldier and it's I that knows it. I've been fighting against you all these years, and many a hard knock we've had. But, General, I honor you for it, and now they tell me you are poor and in want, and I've brought you this basket. Please take it from a soldier.

LEE—I thank you comrade, but I'm glad to tell you I am not in need. But there are plenty of poor fellows over at the hospital who would be only too glad to get food from so generous a foe.

PAT—Just as you say, sir, but if ever you are in need just let Pat Murphy know, that's all. (*Exit.*)

(*Enter MRS. JACKSON.*)

LEE—How do you do, Mrs. Jackson.

MRS. JACKSON—Good morning General, and how are all the family?

LEE—We are all as usual, the women of the family very fierce and the men very mild.

MRS. JACKSON—I think every woman of the South is fierce now. I am bringing up all my sons to hate the Yankees.

LEE—Madam, don't bring up your sons to detest the United States Government. Recollect that we form one country now. Abandon all this local hatred and make your sons Americans.

MRS. JACKSON—How can you talk that way after the way you have been treated.

LEE—General Grant has acted with magnanimity.

MRS. JACKSON—If there ever was a saint on earth, you are one. Now I must go upstairs and tell your wife so, but I reckon she knows it. Good morning. (*Exit MRS. JACKSON. Enter JACK SHARPE dressed in ragged clothes, he looks all around, then goes up to Lee and salutes.*)

SHARPE—General, I'm one of your soldiers, and I've come here as the representative of four of my comrades who are too ragged and dirty to venture to see you. We are all Virginians, General, from Roanoke County, and they sent me here to see you on a little business.

They've got our President in prison and now—they—talk—about—arresting—you. And, General, we can't stand—we'll never stand and see that.

Now, General, we five men have got about two hundred and fifty acres of land in Roanoke—very good land, too, it is, sir—and if you'll come up there and live, I've come to offer you our land, all of it and we five men will work as your field hands, and you'll have very little trouble in managing it with us to help you.

And, General, there are near about a hundred of us left in old Roanoke, and they could never take you there, for we could hide you in the hollows of the mountains, and the last man of us would die in your defense.

LEE—I thank you and your friends, but my place is among the people of Virginia. If ever they needed me, it is now. (*He goes to the door and calls SAM. Enter SAM.*)

LEE—Sam I want you to find all the clothes I can do without and give them to this soldier for his friends.

SHARPE—I thank you general, and if ever you change your mind, just let Jack Sharpe hear from you. (*Exit JACK and SAM. Enter Lee's oldest son, G. W. CUSTIS LEE.*)

G. W. LEE—Well, Father, hard at work entertaining visitors as usual, I suppose.

LEE—Yes, I don't see how so many find the time to come here.

G. W. C. LEE—Lots of the poor soldiers are out of work.

LEE—I am sorry. Tell them they must all set to work, and if they cannot do what they prefer, do what they can. Virginia wants all their aid, all their support, and the presence of all her sons to sustain her now.

G. W. C. LEE—I don't quite know what I'm going to do myself yet.

LEE—You can work for Virginia, to build her up again. You can teach your children to love and cherish her.

G. W. C. LEE—You are right, Father, all my life you have never failed to give me inspiration. (*Exit. Enter SAM and hands LEE a letter. He opens it and reads.*)

LEE—"Dear General: we have been fighting hard for four years, and now the Yankees have got us in Libby Prison. The boys want you to get us out if you can, but, if you can't, just ride by the Libby, and let us see you and give you a cheer. We will all feel better after it."

SAM—Will you all go for to see 'em, Marse Robert?

LEE—They would make too much fuss over the old rebel. Why should they care to see me? I am only a poor old Confederate. (*Exit SAM, shaking his head. Enter MR. BROWN, a well-dressed business man.*)

BROWN—I have not the honor of your acquaintance, General, except as all the world knows you. My name is Brown and I represent a well known Insurance Company.

LEE—I am afraid my life is hardly worth insuring, Mr. Brown.

BROWN—It is not about that I came to see you. I understand you are not as yet permanently employed and I have come, therefore, to offer you the presidency of our company at a yearly salary of \$50,000.

LEE—I thank you, sir, but I would be of no value to your company, as I know nothing whatever in regard to insurance.

BROWN—But, General, you will not be expected to do any work, what we wish is the use of your name.

LEE—My name is not for sale. I thank you, sir. Good morning. (*Exit BROWN. Enter Judge Brockenborough.*)

GEN. LEE—Good morning, Judge, what a pleasure to see an old friend!

JUDGE—Good morning, General, I should not have dared to call on so busy a man if I did not have a special mission. I have come to offer you the presidency of Washington College, at a salary of \$1,500 a year. I am sorry we can offer no more, but the war has left the college in a wretched condition.

LEE—I am afraid because of my many enemies that my connection with the college would make its condition far more wretched.

JUDGE—No, General, the whole South loves and respects you, and if you will only accept this position you will make us the happiest of all colleges.

LEE—I would have much preferred that your choice had fallen upon an abler man. But if you really want me, I will be only too glad to come. I have led the young men of the South in battle. I have seen many of them die on the field. I shall try to devote my remaining energies to training young men to do their duty in life.

****Transcribers Notes****

Minor punctuation errors corrected

Page 15 dishonorable changed to dishonorable

Page 20 Appomattox and Page 51 Appomatox both spellings left intact
Multiple use of defence/defense left intact

*** END OF THE PROJECT GUTENBERG EBOOK ROBERT E. LEE: A
STORY AND A PLAY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.